

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 12
Honorable Nahal Iravani-Sani, Presiding**

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 05/15/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 7	26CV484360	Mohammad Khokhar v. Gene Kristul et al	OSC TRO/PRELIMINARY INJUNCTION Plaintiff's motion for preliminary injunction is DENIED. A preliminary injunction is an extraordinary remedy. In determining whether to issue such relief, the Court considers: (1) the likelihood that the moving party will prevail on the merits at trial, and (2) the interim harm the moving party is likely to sustain if the injunction is denied as compared to the harm the opposing party is likely to suffer if the injunction is issued. Here, Plaintiff has not met the burden necessary to warrant preliminary injunctive relief. Based on the present record, Plaintiff has not demonstrated a reasonable probability of prevailing on the merits. In addition, Plaintiff has not established that immediate and irreparable harm will occur absent issuance of the requested injunction. Any alleged injury appears compensable through monetary damages or other relief available in the ordinary course of litigation. The balance of harms and equities also does not weigh in favor of the requested injunction. On the current showing, the requested relief would impose burdens and restrictions disproportionate to the speculative or insufficiently supported harm asserted by Plaintiff. Accordingly, the motion is DENIED. Defendants to prepare the proposed order, accompanied by EFS-020 within 7 days of the hearing. Matter will remain as set for further Case Management Conference July 30, 2026 in Department 12.
LINE 8			

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LINE 9			
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LINE 11			
LINE 12			

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Plaintiff moves for attorney's fees and costs pursuant to Civil Code section 1794(d) following settlement of this action under the Song-Beverly Consumer Warranty Act. Plaintiff accepted Defendant's CCP 998 offer approximately 14 months after the commencement of this litigation, which included payment of Plaintiff's reasonable attorney's fees and costs. Defendant does not dispute that Plaintiff is the prevailing party for purposes of this motion but contends the fees sought are excessive.

Civil Code section 1794(d) mandates an award of reasonable attorney's fees to a prevailing buyer. In determining a reasonable fee, courts apply the lodestar method, calculated by multiplying the number of hours reasonably expended by a reasonable hourly rate. (See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.)

Plaintiff seeks \$25,579.50 incurred in attorneys fees and \$955.39 in costs, for a total of \$26,534.89.

Plaintiff's proposed fee recovery is based on 41.1 hours spent by counsel litigating this case. Plaintiff anticipated an additional 4.5 hours in attorney fees with reviewing D's opposition, preparing a reply brief and attending a hearing on their motion. Defendant argues the rates and hours are inflated as the case involved no novel or unique issues and the fees are exorbitant.

Having reviewed the moving papers, opposition, reply, and billing records, the Court finds that the number of hours expended is generally reasonable given the procedural posture of the case. The records are sufficiently detailed, and the Court does not find pervasive duplication or improper billing practices warranting a broad reduction in hours. While defense contends that the claimed hours is excessive for a routine Song-Beverly case, the Court accepts Plaintiff counsel's representation that further reductions in hours have already been made. "The verified time statements of attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (*Horsford v. Board of Trustees pf Ca; St. Univ.* (2005) 132 Cal. App.4th 359, 396; *Martino v. Denevi* (1986) 182 Ca. App.3d 553, 559.)

With respect to hourly rates, the Court finds \$500 per hour for partner-level work, \$350 per hour for associate-level work, and \$150 per hour for law clerk work to more closely reflect the prevailing market rates for comparable services in this community. The Court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate. (*Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009)

Accordingly, the motion for attorney's fees and costs is GRANTED IN PART AND DENIED IN PART, as follows:

1. The Court sets reasonable hourly rates at \$500 for partner-level work, \$350 for associate-level work, and \$150 for law clerk work.
2. Plaintiff's request for costs in the amount of \$955.39 is granted.